

Result of the cases. — The result appears to be that where the direction is to raise the fines out of “the rents, issues, and profits,” simply, the Court may be compelled, by the express language of the instrument, to throw the fines upon the *annual* rents, but will lean strongly against such a construction, and where the trustees are empowered to raise the fines out of “the rents, issues, and profits, *or* by mortgage,” it will hold the discretion to apply only to the temporary means of raising the fund, and will apportion the burthen according to the general rule (*c*).

5. **Of raising the fines by way of insurance.** — On a reference to the Master in Chancery by Sir J. Leach, how a fund for payment of fines on the renewal of leaseholds for *lives*, where the fines were to be paid from the *annual* rents, could best be secured, the Master proposed in his report, that each of the lives, upon which the leases were held, should be insured *against the life of the tenant for life* in a sum sufficient to cover the amount of the fine, and that the premiums upon the policies should be paid out of the annual rents and profits (*d*). Upon this arrangement we must remark that the lives of the *cestuis que vie* ought to have been insured *unconditionally*, and not against the life of the tenant for life, for the estate was continually deteriorating as the lives wore out, and the remainderman was entitled to have good lives or equivalent insurances. In leaseholds for years, the remainderman has a right to a proportional accumulation towards the payment of the next fine, and why is not the same principle to prevail in the case of leaseholds for [*370] lives? Subject to this observation, a * more convenient mode of raising the fines could not perhaps be suggested, and a trustee under similar circumstances would scarcely incur a risk in acting upon it at his own discretion.

6. **Power to charge freeholds for raising fines.** — Where freeholds and leaseholds for lives are limited to the same uses, it is usual, from the difficulty of mortgaging leaseholds vested

[(*c*) See *Re Marquess of Bute*, 27 Ch. D. 196.]

(*d*) *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 124; and see *Greenwood v. Evans*, 4 Beav. 44.